

## COURT

Court of Appeal Luxembourg

## PROCEEDINGS

Infringement action

## PATENT

**EP 3 356 109**FOAM RESIN STRUCTURAL PART  
FOR A FRAME OF A VEHICLE AND  
PRODUCTION METHOD THEREFOR

## KEYWORDS

Competence of the UPC for pending cases...

Applicable law to pending cases

Prohibition of retroactivity

Person skilled in the art

Product-by-process claim

Subject matter of appeal/Requirements for ...

Late-filed arguments/new state of the art ra...

**Article 3**

Scope of application

## SUMMARY

The Court of Appeal Luxembourg ruled on an infringement action. The patent at issue relates to a foam resin structural part for a frame of a vehicle and production method therefor. According to the headnotes of the decision, a person skilled in the art is presumed to consult relevant experts or obtain information from other technical fields when they recognize that a solution or similar problem exists there. When a product claim includes manufacturing process specifications, those specifications serve only to indirectly describe the product, and the claim is limited to products made by that process only if the specified properties cannot be achieved any other way. If a patent claim does not explicitly state that process steps must follow a particular sequence, this generally indicates that the sequence is not mandatory. A general term in a prior publication does not automatically disclose all specific terms falling within it unless a person skilled in the art would readily recognize them as self-evident upon careful reading. The jurisdiction of the UPC does not require that the UPCA be applied to the substantive merits of the case, since determining jurisdiction and determining which law applies substantively are separate questions. The UPCA contains substantive law provisions in Articles 63, 64, 67, 68 and 72, and because jurisdiction and applicable substantive law are not aligned, these provisions do not apply to facts arising before 1 June 2023. Procedural provisions of the UPCA apply from its entry into force, but substantive provisions apply to pre-existing situations only when their wording, purpose or structure clearly indicates retroactive application, in accordance with principles of legal certainty and protection of legitimate expectations. Since the UPCA contains no explicit provision addressing how concluded situations existing before 1 June 2023 are treated, substantive law provisions of the UPCA do not cover European patents involved in situations that concluded before that date.